OPEN LETTER · EYE ON SHOALHAVEN COUNCIL

Letter to Cr Steele and Cr Kemp disputes 'Big Spotty protected 50 years ago' claim

Sent 17 August 2026 · To Brett Steele, Cr Denise Kemp · Response requested by 21 August 2026

Sent 14 August 2026 and published in full at steveprothero.substack.com.

Dear Cr Steele,

What you said <>
At the Ordinary Meeting of 26 May 2026, in debate on your notice of motion CL26.65 — Protecting Communities' right to access Community Areas and Protect Our Logging Workers — you addressed those who had signed petitions and written to the State Government seeking a Big Spotty Flora Reserve. You were reported as telling them their wish had already been granted:

"Your wish was granted 50 years ago by the Forestry Corporation."
your words, they are not correct, and the source that shows they are not correct is the very organisation you named.

What Forestry Corporation says <>
Forestry Corporation of NSW publishes a page on North Brooman State Forest. On the exclusion zone, it says this, in full:

"During the last harvesting operation in 2005, a 60-metre radius protection zone was established and ahead of any future operations protections will again be put in place."
Two thousand and five.

Twenty-one years ago, not fifty.

The same page lists the compartment's harvesting history — 2005, 1978, 1966, 1951 and earlier than the 1950s. The 1978 operation sits inside the window your statement asserts.

And the Forestry Corporation of NSW, the body you named as having granted the protection, did not exist fifty years ago. It was constituted as a State-owned corporation on 1 January 2013 under the Forestry Act 2012. Before that the bodies were the Forestry Commission of NSW and State Forests of NSW.

The fair version of your case, which I am putting for you <>
I am not going to pretend there is nothing behind what you said, because there is, and a correction that overstates itself is worth nothing.

Forestry Corporation does claim long-standing care of this tree. It describes Big Spotty as having "for many years been permanently protected within an exclusion zone" the tree is still standing after four recorded harvesting operations and whatever preceded them, and

that is not an accident. If your point was that the industry has looked after this tree for a long time, that point is defensible and I would not write to you about it.

The trouble is that you did not put it that way.

You attached a specific number to a specific instrument, and used it to tell people who had signed a petition that what they were asking for already existed.

On the record of the organisation you named, the instrument you were describing is twenty-one years old, and no published source anywhere — not Forestry Corporation, not the EPA, not the NSW Government, not any media report from 2023 to this year — states or supports a figure of fifty years. I have looked. The only place that number appears in the entire record is your own statement in the chamber.

And this is the part that should trouble you most <>
If protection had been granted fifty years ago, this Council would not have spent 2023 asking for it.

On 24 April 2023, Council resolved — carried unanimously — to ask the NSW Government to remove the forest section containing Big Spotty from Forestry Corporation's logging schedule and to develop a long-term protection plan.

On 31 July 2023, on a motion by Cr Moo D'Ath, Council resolved by eleven votes to two to lobby the State Government to convert Forestry Compartment 50A of North Brooman State Forest — some 250 hectares — into a Preserved Forest Area, and to write to State ministers, local members, the Chief Executive of Forestry Corporation and its board.

Both predate the current term, and neither is mine to characterise. But a council that had understood the matter settled half a century earlier does not vote unanimously in April and eleven to two in July to ask for something more. The people you told in May 2026 that their wish had been granted were asking for the same thing this Council itself had asked for, twice, three years earlier.

What I am asking you to do <>
Not much, and nothing that costs you your position.

Correct the statement on the record. The next Ordinary Meeting is Tuesday 25 August 2026. I am not going to pretend Council's Code of Meeting Practice gives you a tidy mechanism, because it does not — Shoalhaven's Code has no personal-explanation provision, and clause 10.22 is confined to a councillor who claims to have been misrepresented during debate on a live motion. What is available to you is simple enough: say it plainly on the record at the next relevant debate, or lodge a short notice of motion. Under clause 3.9 a notice of motion must be in writing at least seven calendar days before the meeting, which for 25 August means Monday 18 August.

Say what the correct position is. Not that you were wrong and nothing more. That the exclusion zone dates to the 2005 operation, that Forestry Corporation describes its care of the tree as long-standing, and that this Council resolved twice in 2023 to seek further protection. All three are true at once, and a councillor who says all three is on unassailable ground.

And check the number before it leaves your mouth. A figure used from a seat in that chamber does work that a figure used at a public meeting or on the radio does not. It goes into the minutes. It is repeated by people who were not there. It was repeated, in substance, on 2ST on 13 August. And unlike almost everything else said in public about these forests, what is said in that chamber is recorded, published and permanent — which is a protection for a councillor who is careful, and a problem for one who is not.

Cr Kemp
I am copying this to you, and I want to be equally careful about why.

At the Ordinary Meeting of 24 March 2026, on Cr Killian's notice of motion CL26.44 seeking a Big Spotty Flora Reserve, you voted against. Your stated reasons were unresolved cost and management questions, and you said you were, in the reported words, "a bit surprised they weren't invited to speak on this" — they being Forestry Corporation — and foreshadowed a Council workshop with them.

That was the right question. It was, on the record of that debate, the best question anyone asked. You wanted the land manager in the room before Council resolved anything about the land.

Ten weeks later, on 26 May, you voted for CL26.65 — which acknowledges "the great job that has already been done in protection management for not only Big Spotty, but the whole of The Brooman State Forest" — in a debate in which the mover told petitioners their wish had been granted fifty years ago by that same land manager.

The answer to your March question was one webpage away the whole time. Forestry Corporation's published account of North Brooman State Forest dates the exclusion zone to 2005 and lists the harvesting history. Had that page been in front of the chamber in May — which is precisely what you had asked for in March — the fifty years could not have survived the debate.

So the point I am putting to you is not about who you vote with. It is this: you were right in March, and you did not insist in May. When a councillor identifies that the primary source is missing from a debate and then votes on the debate without it, the identification stops being worth anything.

I will add, because it is on your own record and because the same principle is at work, that this is not the first figure of yours this masthead has been unable to stand up.

Your statement that “the last council have failed to maintain the asset register since 2014” is not supported by any public source I have been able to find. And the pensioner total of 37,245 you gave the chamber on 28 July does not hold as a total: it is arrived at by adding Commonwealth Rent Assistance recipients to age pensioners, disability support pensioners and carers, and rent assistance is a supplement paid on top of those payments and to others besides — so the total counts an unknown number of people twice. The component figures may each be right. The sum is not a number of people.

I raise them because they point the same way as the fifty years. Not one of these is dishonest, and I make no such suggestion about you or about Cr Steele. They are what happens when a figure arrives from somewhere, sounds right, and is used before it is checked.

You already know the remedy. You proposed it yourself in March. Get the primary document in front of the chamber before the vote, not after.

I will publish any reply from either of you in full and unedited, in the same place and at the same length as this letter, whether it agrees with me or not. If I have got anything here wrong, that includes a correction of my own, as it did at the top.

I would ask for a response by 5.00pm on Friday 21 August 2026, which leaves time for anything either of you wishes to put before the 25 August meeting.

Yours sincerely,

Steve Prothero Eye on Shoalhaven Council steveprothero.substack.com

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